Unknown vs Serious Fraud Investigation Office on 27 February, 2024

Author: Navin Chawla

Bench: Navin Chawla

$~3 & 4
* IN THE HIGH COURT OF DELHI AT NEW DELHI
(3)+ BAIL APPLN. 1287/2023
SUSHANT MUTTREJA
..... Petitio
Through: Mr.Trideep Pais, Sr. Adv. with
Ms.Sanya Kumar, Adv.
versus
SERIOUS FRAUD INVESTIGATION OFFICE
..... Respondent
Through: Mr.Amit Tiwari, Sr. Panel
Counsel for SFIO w
Mr.Vedansh Anand, GP.

(4)+ BAIL APPLN. 1289/2023
NISHANT MUTTREJA

Through:

versus
SERIOUS FRAUD INVESTIGATION OFFICE

Through:

CORAM:
HON'BLE MR. JUSTICE NAVIN CHAWLA
ORDER

% 27.02.2024 CRL M. (BAIL) 1333/2023 in BAIL APPLN. 1287/2023 CRL M. (BAIL) 1327/2023 in BAIL APPLN. 1289/2023

1. As these applications have already been allowed vide order dated 22.11.2023 of this court, these applications need not be listed any further.

This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 28/02/2024 at 22:31:01 BAIL APPLN. 1287/2023, CRL.M. (BAIL) 164/2024 & CRL.M.A. BAIL APPLN. 1289/2023, CRL.M.

(BAIL) 166/2024 & CRL.M.A.

2. During the course of the arguments, the learned senior counsel for the applicant, in BAIL APPLN. 1287/2023, that is, Sushant Muttreja, has handed over a copy of the Status Report dated 05.02.2024 filed by the learned Official Liquidator in CP No. 152/2016, in the matter of M/s Cosmic Structure Limited (In Liquidation).

3. He submits that the applicants have submitted a revival proposal for the company, which is under consideration before the learned Company Court. The mode of assessing the revival proposals that have been received by the learned Company Court, was laid down by the learned Company Court in its order dated 25.01.2024. The above status report has been filed by the learned Official Liquidator in continuation of the said directions, inter alia, pointing out as under:-

> "5. It is submitted that prior to seeking a report from the Architect, Chartered Accountant and Valuer, the propounders of the schemes may be directed to file an affidavit giving details like Upfront investment/payment, Bridge Financing, Solvency report / Net Worth report etc. w.r.t. the parameters fixed by this Hon'ble Court"

4. The Official Liquidator has made a prayer to the learned Company Court inter alia as under:-

> "(iii) Propounders of CO.APPL.(M) Nos.

6/2022, 7/2022, 2/2023 & 3/2023, may kindly be directed to pay expenses for appointment of This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 28/02/2024 at 22:31:01 experts as mentioned in the present reports;"

5. On instructions from the wife of the applicant in BAIL APPLN. 1289/2023-Mr.Nishant Muttreja, he submits that without awaiting the orders of the learned Company Court, in case the applicants are released on interim bail, they would file, with the learned Company Court within a period of two weeks of their release, the requisite information as required in paragraph '5' of the status report reproduced hereinabove. The applicants further undertake to pay the expenses as may be determined by the learned Company Court for appointment of the experts as has been prayed by the Official Liquidator in paragraph '(iii)' of the Status Report reproduced herein above.

6. In the present case, as the revival scheme has been submitted by the applicants, to test their bona fide, and keeping in view that the applicants have already undergone custody for more than a period of two years and three months in the present case, the applicants are directed to be released on interim bail for a period of three weeks from the date of their release, binding them to the above-mentioned statement/undertakings on their behalf, and subject to the following conditions:-

(i) Applicant(s) shall furnish personal bonds in the sum of Rs.2,00,000/- (Rupees Two Lakhs Only) each with one sound surety of the like amount each to the satisfaction of the learned Trial Court;

This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 28/02/2024 at 22:31:02

(ii) Applicant(s) shall furnish their mobile numbers to the Investigating Officer and will keep the same operational and active at all times;

(iii) Applicant(s) shall not leave the country without permission of the learned Trial Court;

(iv) Applicant(s) shall not tamper with the evidence nor otherwise indulge in any act or omission that is unlawful or that would prejudice the proceedings in the pending trial and will not extend any threats or inducements to the witnesses and/or any other persons connected with the case;

(v) Applicant(s) shall report to the SHO/IO of the concerned Police Station, twice a week on Monday and Thursday at 03.00 PM, post their release; and,

(vi) Upon expiry of the period of interim bail, Applicants shall surrender before the concerned Jail Superintendent.

7. Copy of this order be sent to the concerned Jail Superintendent for information and necessary compliance.

8. Dasti under the signatures of the Court Master.

9. List on 18th March, 2024.

NAVIN CHAWLA, J FEBRUARY 27, 2024/rv/ss Click here to check corrigendum, if any This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 28/02/2024 at 22:31:02